



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAR 8 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12259

EXPIRATION DATE: January 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Glaxo Wellcome, Inc.
Research Triangle Park, North Carolina
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of certain infectious substances in combination packagings, transported by Glaxo Wellcome using a dedicated motor vehicle. This exemption provides no relief from any regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subpart C, and 49 CFR § 173.196.
5. BASIS: This exemption is based on the application of Glaxo Wellcome Inc., dated April 14, 1999, and supplemental information dated January 4, 2000, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Infectious substances, affecting humans, Risk Group 1 and 2 as defined in the U.N. Recommendations on the Transport of Dangerous Goods, Tenth revised edition *	6.2	UN2814	(n/a)
Infectious substances, affecting animals only, Risk Group 1 and 2 as defined in the U.N. Recommendations on the Transport of Dangerous Goods, Tenth revised edition *	6.2	UN2900	(n/a)

* Risk Group 3 and 4 materials are not authorized for transport by this exemption.

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) Infectious substances, as listed in paragraph 6, must be packaged in combination packagings as follows: The substances, packaged in a three (3) mil thick polyethylene plastic bag of not more than thirty (30) gallon capacity (inner packaging), must be secured in a fiber board box (outer packaging). Not more than three (3) filled and sealed bags must be packaged in a box. Sufficient absorbent material must be placed between the inner and outer packagings to absorb the entire contents of all inner packagings in case of bag breakage or leakage. The gross mass of a package must not exceed twenty (20) kilograms (44 pounds).

(2) All boxes must be secured against movement in the transport vehicle.

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b. OPERATIONAL CONTROLS -

(1) This exemption authorizes the transport of packages containing infectious substances in a specialized dedicated transport vehicle from the Main Research Building to the Incinerator Complex by crossing an intersection with traffic light at Cornwallis Road. Packages must be prepared and transported by Glaxo Wellcome.

(2) The packages must be transported to the Incinerator Complex immediately after the transport vehicle is loaded at the Main Research Building.

(3) Not more than fifteen (15) packages must be transported in a transport vehicle.

(4) Only one trip per day is authorized. Packages must be transported between the hours of 9:00 a.m. and 3:00 p.m.

(5) Emergency response procedures must be in place and operational at the time of transportation.

8. SPECIAL PROVISIONS: None as requirement of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

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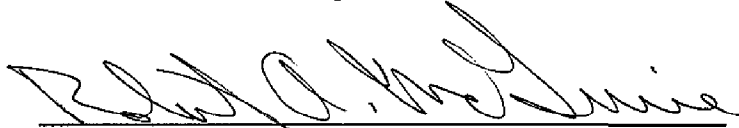
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Each "hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Robert McGuire
Acting Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590-0001.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA
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